OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Letter to Shoalhaven councillors: a draft motion on the CEO's public statements

Sent 10 November 2026 · To Shoalhaven City Council · Response requested by 24 November 2026

To: The Mayor and Councillors, Shoalhaven City Council
From: Stephen Prothero, Eye on Shoalhaven Council
Date: 10 November 2026
Subject: Safeguarding the governing body's role — a suggested motion on the CEO's public statements

Dear Mayor and Councillors,

On the Nowra.org.au podcast the Chief Executive spoke at length about Council's direction.

In about 6,300 words, councillors were mentioned three times:

twice as “dedicated”, and
once in a list of people whose wellbeing must be protected.
The word “Mayor” does not appear.
Rates, land, FOGO, a hotel and the zoning of Nowra were put in the first person: “I've got to shift us...”, “We've got to introduce FOGO in the next couple of years”, “I know the rating structure is wrong”.
Those are decisions the Act gives to you.

Section 223(1) makes the governing body responsible for directing and controlling the affairs of the council
(a), for endorsing the strategic plans, programs, strategies and policies
(e), for adopting the rating and revenue policy and operational plans
(f), and for ensuring the council acts honestly, efficiently and appropriately
(l). Section 226(c) makes the Mayor the principal member and spokesperson of the governing body.
Section 335 gives the Chief Executive the day-to-day management of the council in accordance with your plans and policies, implementation of your lawful decisions, and the duty to advise you (c).
My fact-check of the interview is in The CEO Invited Criticism. Here It Is..

Two claims were wrong or unsupported on the public record: a “$20 million” Newcastle law faculty (the building cost $95 million), and
a FOGO start “in the next couple of years”, for which Council's own page gives no date.
Today I have also written an open letter to Mr Constance asking him to answer the

questions and to confirm in writing that he understands his role.
I do not suggest bad faith.

The concern is that the public may now believe that Council has set a direction that only the governing body can set, and that you may be seen to have been bypassed.

I suggest you act now, in a measured way, so the role of the elected body is on the record.

A draft motion follows for any councillor to adapt.

Draft motion
That Council:
1. Reaffirms that, under s 223 of the Local Government Act 1993, the governing body determines the rating and revenue policy, the strategic plans, programs, strategies and policies of the council, and the disposal of its land, and that under s 226 the Mayor is the principal member and spokesperson of the governing body;
2. Notes that, under s 335, the Chief Executive's role is the day-to-day management of the council in accordance with those plans and policies, implementing lawful decisions of the council, and advising the Mayor and governing body;
3. Requests that the Chief Executive provide a written report to the next ordinary meeting identifying, for each statement of intention or direction made in his Nowra.org.au interview of 10 November 2026 on rating, FOGO, land, planning and a Nowra hotel, whether it reflects a resolution of Council, a matter on which councillors have been briefed, or his personal view;
4. Requests that the Chief Executive publicly clarify, in the same forum or on Council's website, that Council has not resolved a start date for FOGO, if that is the case, and any other statement found in the report not to reflect a resolution of Council;
5. Asks that the Chief Executive brief the Mayor and councillors before making public statements of intention or direction on matters reserved to the governing body, and refer media enquiries on Council's position on those matters to the Mayor;
6. Arranges, within 60 days, a briefing for all councillors and the Chief Executive on their respective roles under ss 223, 226 and 335, to be delivered by a person independent of Council staff; and
7. Asks the Mayor to include in the Chief Executive's next performance review, in consultation with councillors under s 226(n) and the Office of Local Government's Guidelines for the Appointment and Oversight of General Managers, the Chief Executive's understanding of his role and the boundary between advising the governing body and speaking for it.
Whether the Code of Meeting Practice requires notice of motion, and how many days, I have not checked. Please confirm with the Governance team; a Mayoral Minute or urgency motion is a matter for the Mayor.
Why each clause matters

Clauses 1 and 2 cost nothing and say only what the Act says. They put on the record who decides.

Clauses 3 and 4 ask for a factual account. If every statement reflects a resolution or a briefing, the report will show it. If not, the community deserves the correction.

Clause 5 is the practical safeguard.

Under s 335(c) the Chief Executive advises the governing body. Advice that comes first, and statements of direction that follow the decision, protect the elected body and the Chief Executive alike.
Clauses 6 and 7 go to the underlying question of understanding of the role, and tie it to the performance review that the governing body is already responsible for under s 223(1)(i).

The councillors answer to residents at the ballot box for rates, land and services. If those decisions are seen as the Chief Executive's, that accountability is blurred. I would welcome your view on whether you will move or support a motion of this kind. I ask for a reply by 5.00pm on Tuesday 24 November 2026, and I will report who supported it, who declined and who did not reply.
No adverse finding is made against any councillor or officer. I will correct any error promptly and with the same prominence.
Yours sincerely,
Stephen Prothero
